Where You Are: The Legal Step, Five of Nine, and What Comes After It

The nine steps of the Medicaid Planning Roadmap, with yours marked.

When a family starts planning ahead, the legal papers can look like the whole job. They're one step of nine, and it's a step you can take at Dad's pace.

This page shows the whole road, where you are on it, and what comes next.

Phase 1 · Assess

Understand where you are today.

1. **Understand** Care Needs → Levels of Care & Costs → Care Plan
   You finish with: Future Care Planning Assessment
2. **Organize** Income & Assets → Ownership & Expenses → Financial File
   You finish with: Family Financial Inventory
3. **Assess** Care & Nonfinancial Eligibility → Income & Assets → Barriers & Readiness
   You finish with: Medicaid Readiness Assessment

Phase 2 · Plan

Develop and implement your strategy.

4. **Plan** Barriers & Issues → Priorities & Professional Team → Written Plan
   You finish with: Advance Medicaid Planning Roadmap
5. **Legal** Authority & Documents → Property, Trusts & Transfers → Attorney Review
   You finish with: Legal Planning Review

   You are here. This step is about Dad's legal papers: which ones exist, where they are, who they name, and which questions belong to an elder law attorney. It's finished when his decision-making and estate-planning documents have been located and reviewed, with an elder law attorney where legal advice is required, and the known Medicaid-related legal issues have been identified for attorney review.
6. **Financial** Costs & Runway → Asset Treatment & Tools → Strategy & Documentation
   You finish with: Long-Term Care Funding Plan

Phase 3 · Secure

Secure benefits, protect assets, and maintain eligibility.

7. **Apply** Prepare → Submit → Manage
   You finish with: Medicaid Application-Ready File
8. **Protect** What May Be Protected → What May Remain Exposed → What Needs Ongoing Attention
   You finish with: Asset Protection Assessment

9 **Maintain** Ongoing Requirements → Changes & Renewals → Maintenance System

You finish with: Medicaid Monitoring & Maintenance System

What this step produces

A Legal Planning Review: the documents that exist, who they name to make decisions, the ones that are missing or may need another look, your legal questions, and the items for an attorney to review. The family's part of it is a list and a set of questions. It isn't a legal opinion, and completing it doesn't establish that any document is valid, sufficient or current.

What happens next

The legal questions go to an elder law attorney, who advises on powers of attorney, health care documents, wills, trusts and property ownership, and updates documents where needed. The Family Caregiver Alliance says a family can ask the local Area Agency on Aging for a legal consult or hire an attorney who specializes in elder care law. [1]

After this comes step six, Financial: the financial pieces of the plan, worked through with a licensed financial professional. What you gathered here goes with you. The third phase follows, with Apply, Protect and Maintain. For a family planning ahead, those steps may be a long way off.

This step also comes round again. Your Medicaid planner and the family review the legal plan periodically and after major life events. AARP's legal checklist for family caregivers makes a similar suggestion about a will: review it every few years or during major life changes. [2]

Who is involved, by role

- You and your family: finding the papers, writing down what they say, keeping the list of questions.
- Dad: his wishes, his papers and his decisions. He takes part in all of it.
- Your Medicaid planner: helps the family inventory the existing documents and identify known Medicaid-related legal issues for attorney review, and reviews the legal plan with the family over time.
- An elder law attorney: legal advice and legal documents. Advises on powers of attorney, health care documents, wills, trusts and property ownership, and updates documents where needed.

What this page doesn't promise

How long any step takes, who will be available, or how things turn out. Families move through the steps at different speeds, and rules vary by state. Nothing on this page is legal, financial or tax advice.

Ready for the next step?

You know where the legal step sits, what it produces and who is involved after it. The planning interview is the next thing to do from here: it asks about your family's situation and gives you a free planning report you can bring to any conversation about paying for care.

Get Your Free Planning Report ›

WHERE THIS COMES FROM

The nine steps are the Medicaid Planning Roadmap's own. The ways to find an attorney are the Family Caregiver Alliance's, and the suggestion about reviewing a will is AARP's.

1. Family Caregiver Alliance, What should I do to help get my family member's legal and financial affairs in order?
2. AARP, A Legal Checklist for Family Caregivers